

**DEPARTMENT THREE
JUDGE STEPHEN GIZZI
707-207-7303
TENTATIVE RULINGS SCHEDULED FOR
TUESDAY, MAY 19, 2026
AMENDED**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**HERNANDEZ and HERNANDEZ v. SAHAJANAND INVESTMENT, LLC, et al.
Case No. cu23-04949**

Motion by Plaintiffs for Final Approval of Class Action/PAGA Settlement

TENTATIVE RULING

Parties and any interested persons are to appear for hearing as scheduled. Plaintiffs are to cite to evidence that the settlement amount and proposed allocation to PAGA claims was provided to the LWDA, and LWDA given a reasonable opportunity to object. Plaintiffs are also to explain why they have proposed that any unclaimed/uncashed amount after distribution be paid to Legal Aid of Marin, instead of a charitable organization in Solano County. Plaintiffs' counsel is also advised that the court intends to reduce the attorneys fees down to \$40,500.00 (27% of gross settlement), instead of the \$50,000 (one-third of gross settlement) requested.

**BARRAGAN v. KEHOE, et al.
Case No. CU25-09242 (consolidated with case CU25-09269)**

Motion by Attorney S. David Rosenthal to Be Relieved as Attorney of Record

TENTATIVE RULING

The motion is granted, with withdrawal effective only upon prompt service of the client of the signed order.

MEAGAN DONAHUE et al. v. WELLTOWER, INC. et al.
Case No. CU25-12031

Plaintiffs' Motion for Leave to File First Amended Complaint

TENTATIVE RULING

Plaintiffs MEAGAN DONAHUE and CORTLAND ROUNDS move for leave to file a first amended complaint in this elder abuse action against Defendants WELLTOWER, INC., PSL ASSOCIATES LLC dba PEGASUS SENIOR SERVICES, HCRI TUCSON PROPERTIES, INC., WELLTOWER PEGASUS TENANT LLC dba VILLAGE AT RANCHO SOLANO, SOJOURN HOSPICE AND PALLIATIVE CARE – EAST BAY, LLC dba BRISTOL HOSPICE – EAST BAY, BRISTOL HOSPICE, LLC, and MORGAN WHINERY.

The trial court may, in its discretion, allow amendments to pleadings “in furtherance of justice.” (Code Civ. Proc., § 473, subd. (a)(1).) The court has wide discretion but repeatedly stated policy encourages liberality in allowing amendment. (See *Frost v. Witter* (1901) 132 Cal. 421, 424; *Cardenas v. Ellston* (1968) 259 Cal.App.2d 232; *Kolani v. Gluska* (1998) 64 Cal.App.4th 402, 412.) Indeed, if the motion to amend is timely made and granting the motion will not prejudice the opposing party, it is error to refuse permission to amend where the refusal also results in a party being denied the right to assert a meritorious action or defense. (*Morgan v. Superior Court* (1959) 172 Cal.App.2d 527, 530.)

The court finds that Defendants will not be prejudiced by granting leave. Plaintiffs' proposed amendment simplifies the litigation by removing a cause of action, clarifying the names of two defendants, and removing a claim for punitive damages from the wrongful death cause of action.

Plaintiffs' motion for leave to file a first amended complaint is granted. Plaintiffs are to file their first amended complaint within ten days of the date of this order.

HICKS v. MARATHON STAFFING SOLUTIONS INC., et al.
Case No. FCS059015

Motion by Attorney Richard J. Simmons; Hilary A. Habib; Nathan C. Yu to Be Relieved as Attorney of Record

TENTATIVE RULING

The Court rescinds its earlier tentative ruling for the Motion by Cross-Defendants' Attorneys Richard J. Simmons; Hilary A. Habib and Nathan C. Yu to Be Relieved as Attorney of Record. The Motion is continued indefinitely at this time because the court has become aware that the Cross-Defendant, Marathon Staffing, Inc. recently filed a voluntary Petition for Chapter 7 Bankruptcy. This has triggered an automatic stay in the instant case precluding all judicial actions or orders until such time as the Bankruptcy Court issues an order granting relief from the automatic stay, or an affirmative order authorizing the court to take the requested action(s).

HICKS v. MARATHON STAFFING SOLUTIONS INC., et al. **Case No. FCS059546**

Motion by Attorney Richard J. Simmons; Hilary A. Habib; Nathan C. Yu to Be Relieved as Attorney of Record

TENTATIVE RULING

The Court rescinds its earlier tentative ruling for the Motion by Cross-Defendants' Attorneys Richard J. Simmons; Hilary A. Habib and Nathan C. Yu to Be Relieved as Attorney of Record. The Motion is continued indefinitely at this time because the court has become aware that the Cross-Defendant, Marathon Staffing, Inc. recently filed a voluntary Petition for Chapter 7 Bankruptcy. This has triggered an automatic stay in the instant case precluding all judicial actions or orders until such time as the Bankruptcy Court issues an order granting relief from the automatic stay, or an affirmative order authorizing the court to take the requested action(s).

HICKS v. MARATHON STAFFING SOLUTIONS INC., et al. **Case No. FCS059547**

Motion by Attorney Richard J. Simmons; Hilary A. Habib; Nathan C. Yu to Be Relieved as Attorney of Record

TENTATIVE RULING

The Court rescinds its earlier tentative ruling for the Motion by Cross-Defendants' Attorneys Richard J. Simmons; Hilary A. Habib and Nathan C. Yu to Be Relieved as Attorney of Record. The Motion is continued indefinitely at this time because the court has become aware that the Cross-Defendant, Marathon Staffing, Inc. recently filed a voluntary Petition for Chapter 7 Bankruptcy. This has triggered an automatic stay in the instant case precluding all judicial actions or orders until such time as the Bankruptcy

Court issues an order granting relief from the automatic stay, or an affirmative order authorizing the court to take the requested action(s).

Join ZoomGov Meeting

<https://www.zoomgov.com/j/1602210102?pwd=emlhR29SczExam56NFFqWHFvSitmZz09>

Meeting ID: 160 221 0102

Passcode: 650928

One tap mobile

+16692545252,,1602210102#,,, *650928# US (San Jose)

+16692161590,,1602210102#,,, *650928# US (San Jose)